OpenAI

1455 3rd Street
San Francisco, CA 94158

October 20, 2026

From:
Chan Park
Head of U.S. and Canada Policy and Partnerships
OpenAI

To:
The Honorable Gavin Newsom

Re: Recommendations under Sept. 18, 2026 Executive Order

Dear Governor Newsom:

OpenAI supports California's leadership in frontier AI safety and welcomes the opportunity to advance the goals of your September 18, 2026, executive order related to stronger independent oversight, reliable emergency controls, and improved incident reporting.

As is now well known, in July of this year, OpenAI disclosed that models undergoing internal cybersecurity evaluations had circumvented controls intended to isolate them from the internet and compromised parts of our internal research infrastructure and the systems of Hugging Face, a platform for sharing and collaborating on AI models and datasets. We initially understood this primarily as a security incident. Our investigation showed that it was driven by misalignment: models pursuing their assigned tasks through actions outside their intended scope and permissions. A serious security breach, such as the Hugging Face incident, is one possible consequence of misalignment. Other instances involve unauthorized behavior without a comparable security breach, such as models posting on third-party sites, which we call “agent spam.” We must address both: preventing severe security incidents and correcting other unexpected or concerning model behaviors even when no security system is breached. We are continuing to review earlier activity, prioritizing the most serious incidents while expanding our investigation to lower-severity behavior.

Since disclosing the Hugging Face incident, we have investigated what happened, alongside independent investigations by METR and Redwood Research. We take seriously the misalignment and safety incidents involving our models, and we are applying the lessons learned to strengthen our safeguards and improve how we identify and address safety concerns. Our September 28 post, Towards safety cases for frontier AI training, sets out the reforms we are working to implement: structured safety documentation before frontier reinforcement-learning runs; stronger alignment, containment and monitoring safeguards; clearer procedures for escalating concerns and pausing work; senior leadership review and accountability; sufficient access for auditors; and investigations that examine operational and cultural failures and publicly report findings and corrective actions.

We have committed to this work voluntarily, and we know it is incumbent upon us to demonstrate progress through implementation and transparency. But we also believe that your Executive Order can serve as a starting point for industry-wide rules that hold all frontier AI developers accountable for meeting clear safety obligations. To that end, we recommend strengthening SB 53, California’s foundational frontier AI safety law, which established requirements for transparency, critical-incident reporting and whistleblower protection, to incorporate lessons learned from these recent incidents.

In this letter, we offer recommendations in two parts. First, we propose concrete amendments to strengthen SB 53 by expanding its focus on catastrophic risk to establish clear rules of the road for a broader range of security and misalignment incidents. Second, we provide feedback on the executive order’s four priorities, providing our viewpoint on key policy issues that California and the nation are grappling with including whether a “kill switch” is technically feasible and how we get at the intention of that phrase: to have a way to shut down AI agents, as well as best practices and what the law should require with regard to independent evaluations and assessments. We believe these recommendations could also be implemented through amendments to SB 53.

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I. Strengthen SB 53 with a concrete package of amendments

SB 53 provides an important foundation for frontier AI safety: it requires large frontier developers to publish and follow safety frameworks, disclose how they assess and mitigate serious risks, and report critical safety incidents, with whistleblower protections and public enforcement. At OpenAI, our Frontier Governance Framework describes how our practices align with SB 53 through our risk-assessments, safeguards, and incident-response practices. We report quarterly to California's Office of Emergency Services on catastrophic risks from internal model use.

We believe that SB 53 represents a strong start for frontier safety regulations, but that requirements must evolve as AI capabilities advance and new risks emerge. Two developments in particular illustrate where SB 53 should be strengthened: our experience investigating and publicly reporting misalignment incidents points to the need for stronger safeguards and reporting, while increasing automation of AI research creates new demands on monitoring and human oversight. Accordingly, we support an SB 53 amendment package for the next legislative session that would:

- **Address automated AI research and recursive self-improvement (RSI).** Safety frameworks should expressly address frontier models' ability to automate AI research and development, including recursive self-improvement, and whether those capabilities increase the potential for catastrophic risks or make these risks harder to monitor, assess, or mitigate.
- **Support stronger internal cybersecurity measures.** Safety frameworks should describe cybersecurity practices to protect unreleased model weights and prevent frontier models, including those under development, from materially circumventing internal security controls—for example, safeguards that limit models within sandboxes from accessing the internet during training and evaluation. These practices should be proportionate to relevant risks and consistent with recognized federal standards and guidance.
- **Require monitoring of unsafe model behavior.** Frontier developers should monitor for unsafe model behavior during development and evaluation and explain those practices in their published safety frameworks. Monitoring should detect attempts to circumvent the developer's own safeguards or another organization's security controls without their authorization, and access confidential information protected by such security controls. Safety frameworks should connect monitoring to clear escalation and incident response procedures, and criteria for safely resuming operations after the causes have been investigated and addressed.
- **Require notice to affected parties for covered cyber incidents.** Frontier developers should publish and follow a policy for written notice to third parties affected by incidents in which a frontier model, during development or evaluation, exploits a security vulnerability without authorization from either the large frontier developer or the third party and accesses, alters, or destroys confidential information protected by the third party's security controls. The policy should specify which incidents require notice, any exceptions, who must be notified, and the timing and content of notification, helping affected organizations protect their systems and respond.
- **Require effective shutdown controls.** Frontier developers should be required to maintain effective shutdown controls and explain in their safety frameworks how they will halt unsafe operations within their control. In the absence of national standards, California should establish clear, enforceable conditions for when developers must halt affected operations through rulemaking involving industry and other stakeholders.
- **Mandate annual independent compliance audits.** California should require annual independent compliance audits to verify that frontier developers comply with their safety

frameworks and meet their transparency obligations. California should align these requirements with the compliance-based audit approach in Illinois's SB 315, helping harmonize requirements across states and building a foundation for national standards.

- **Strengthen independent technical assessment and meaningful government oversight.** Qualified third- party assessors should independently assess frontier developers' safety claims and safety cases, which cover risks in training, evaluation, and internal deployment, with secure access and strong government oversight.

II. Recommendations on proposals in Executive Order N-9-26

Our recommendations below address the executive order's four priorities, highlighting where clearer definitions and responsibilities, common standards, and stronger public oversight and technical capacity are needed to make these requirements effective. California should build these foundations alongside practical safeguards, advancing protections now while working toward harmonized requirements across states and an eventual federal framework.

A. Requiring that frontier developers embed designated independent verification organizations onsite in their labs to conduct periodic audits and evaluations

We have been working internally on our commitment for deep levels of access for third party evaluators as we believe it is critical for OpenAI and other companies. Such a commitment goes to the crux of independent technical assessments. We lay out our recommendations of such assessments in this section.

Technical assessments serve a distinct but complementary function to compliance audits. Compliance audits, which we discuss in the next section, examine whether developers procedurally follow their safety frameworks and meet their obligations under frontier safety legislation, such as SB 53. Technical assessments independently evaluate the evidence, methods, and reasoning supporting developers' safety claims, including model evaluations, and the effectiveness of safeguards. To support rigorous technical assessments, we recommend providing qualified, independent assessors with meaningful, secure access to help labs, the public, and regulators assess whether catastrophic risks are being effectively managed.

Effective embedded technical assessments require access tailored to a clearly defined assessment scope and sufficient to understand the relevant risks and safeguards, with deeper access justified by the assessment's specific questions and methodology. Assessors' expertise, methods, and degree of integration should reflect the specific questions and claims being examined; some assessments may benefit from sustained engagement, while others can be conducted through more limited access.

Assessors should have sufficient access to relevant evidence, systems, and personnel to conduct rigorous reviews, subject to safeguards that limit unnecessary exposure of sensitive research, intellectual property, and infrastructure. All assessments should be governed by robust security, confidentiality, and conflict-of-interest protections, as discussed below.

We prefer a federal independent-assessment framework because it can establish consistent requirements for qualifications, security, and access to highly sensitive information, including matters involving national security. In the absence of federal action, California can build on SB 813 and AB 1405 to develop a secure, capable assessment ecosystem now, and we are committed to working with the Governor and the legislature to make the framework successful. To make these technical assessments effective, we recommend the following:

Base assessments on evidence-backed safety cases. Common standards for frontier AI and standardized assessment methods are not yet in place. We therefore recommend structuring initial independent assessments around a safety-case framework—a structured explanation of how risks are managed, supported by evidence. Developers should prepare evidence-based safety cases for training and deployment of frontier models, with clear responsibility for approval, monitoring, and response when key assumptions no longer hold. Independent assessors should evaluate those safety cases and claims by examining evidence, testing assumptions and identifying gaps. Independent assessor reports should explain their methodology, uncertainties, access limitations, and disagreements with the developer, clearly specifying that these are technical judgments and not findings of whether the developer has complied with laws or regulations. The developer should have a reasonable opportunity to address the assessors' findings or explain disagreements. We recommend that the California government work with the National Institute for Standards and Technology ("NIST"), industry, and developers to identify shared criteria for safety cases that will support comparison across developers and assessors.

Protect assessor independence. Third party assessors must be able to exercise independent judgment, free from undue influence by frontier labs or other interested parties. Conflict of interest requirements should address organizational and individual conflicts, including financial, employment, governance, donor, and competitor relationships, including assessors' access to or detailed knowledge of competing frontier lab's trade secrets, with disclosure, recusal, or exclusion where appropriate. Compensation arrangements should not reward favorable findings, and a credible public-interest AI assessment ecosystem should not depend solely on industry-funded organizations assessing the companies that support them. Likewise, when third-party assessors are commercial entities—such as established audit firms or comparable firms in other sectors—payment by a frontier lab for their work does not, by itself, establish a conflict of interest. The key question is whether the arrangements, taken together, credibly support the assessor's ability to exercise independent judgment. Public investment can help preserve independence and advance safety for society as a whole.

Protect security & intellectual property. Meaningful access must be paired with enforceable confidentiality obligations, strong information-security controls, and safeguards against sharing sensitive information across labs. Assessor access to source code or sensitive infrastructure should require specific justification and protections proportionate to the sensitivity of that access. In addition, due to the potential cybersecurity risks associated with running evaluations on frontier models, assessors should be required to adhere to cybersecurity standards and best practices.

Build qualified assessment capacity. Few organizations currently have the expertise to conduct rigorous frontier AI assessments. Many reviews require teams combining deep machine-learning experience with specialized expertise in areas such as biology or cybersecurity. Conflicts of interest can further narrow this already limited pool, making it difficult to identify qualified, independent assessors for particular assignments. California should account for these constraints when setting assessment requirements and timelines, and invest in evaluation research, shared testing infrastructure, assessor training, and its own technical oversight capacity, including through partnerships with outside organizations that provide specialized expertise.

Maintain public oversight. The State should retain responsibility for identifying applicable standards and determining acceptable levels of risk to the public. Third-party assessors should pilot technical assessment methods and provide evidence to inform those decisions; their findings should not themselves establish binding standards or determine what risks the public

must accept. In implementing SB 813 and AB 1405, the State should also oversee assessors' competence and methods, investigate misconduct, and suspend or withdraw designation when warranted.

B. Requiring that the safety frameworks, transparency reports, and risk assessments that frontier AI companies are required to file be independently verified pursuant to standards determined to be adequate by an independent verification organization.

Technical assessments and compliance audits need shared standards to be conducted efficiently and effectively. Existing auditing and assurance standards provide a starting point, but common standards tailored to these frontier AI reviews still need to be identified and developed. If California requires one or both forms of review ahead of a federal framework, it should also take responsibility for advancing that work.

Standards development takes time and requires coordination among industry, technical experts, and national and international standards bodies. The federal government, particularly NIST, plays an important role in supporting and coordinating this work. California should take on that convening responsibility if it moves ahead: bringing these groups together, investing in standards development, and accelerating a common approach that can ultimately align with national and international standards.

The State should retain responsibility for deciding which standards are accepted for meeting California's requirements. Independent assessment organizations should contribute technical expertise and evidence, but should not determine the standards developers must meet or the risks the public must accept. To put this approach into practice, we recommend the following:

Start with procedural audits of frameworks and reports. Procedural audits should serve as a starting point because they can build on established auditing methods to check compliance with clearly defined obligations. California should therefore begin with annual independent compliance audits of safety frameworks and transparency reports, following the approach already included in Illinois' SB 315. We support these provisions because they add an external check on whether developers implement their safety and transparency obligations, help regulators identify compliance gaps, and give the public clearer evidence of whether developers are meeting their commitments. California should adopt a comparable approach to Illinois: independent auditors should use generally accepted auditing standards, access materials reasonably necessary for the audit, and provide reports that describe their methodology and findings. Audit information should be available to public authorities, with public findings subject to appropriate redactions.

Limit initial technical assessment scope. For technical assessments, responsible governance should begin with the highest-priority risks and expand as evidence and oversight capacity develop. We therefore recommend that independent technical assessors should focus initially on serious risks arising during frontier training, evaluation, and internal deployment. This should include alignment, containment, and monitoring for increasingly capable agents. Within this scope, technical assessments should consider how automated AI research, including progress toward RSI, could intensify these challenges. This focused approach would enable third party assessors to address the most consequential risks while building the expertise and methods needed for broader assessments.

Accelerate common standards development. As a California-headquartered company, OpenAI is committed to building a strong ecosystem of independent assessors and advancing third-party assessments in the state. Independent technical assessments can help further the science of evaluation and safeguard development, by providing an expert opinion on

methodologies and approaches. However, for a mature assessment ecosystem to be effective, common standards should be developed to ensure parity across practices and compatibility of findings. California should therefore work with the United States Center for Advancing Innovation and Standards for Super Intelligence ("CAISSI"), within NIST, to identify effective practices, unresolved questions, and priorities for common national technical standards. As national standards mature, California should align its assessment requirements with them to provide a consistent technical basis for evaluating safety claims across developers, assessors, and jurisdictions. Throughout this process, the California government should retain responsibility for identifying applicable standards, overseeing independent assessor accreditation and performance, and making consequential regulatory decisions informed by the independent technical assessments.

Designate qualified assessors. The State should also develop a framework for designating qualified assessors. The California government should work with CAISSI to develop designation criteria, drawing on relevant NIST guidance and recognized assurance standards. Designation should require that a third party assessor have expertise in both the assessment of general model capabilities and in the specific risks that are to be evaluated. As standards mature, demonstrated ability to apply them should become a condition of continued designation. This phased approach would strengthen oversight now while building toward consistent national requirements.

C. Requiring the creation of a "kill switch" for frontier models, with the efficacy of the switch verified on an ongoing basis by an independent verification organization.

We support the underlying goal of the executive order's reference to a "kill switch": people must be able to stop unsafe AI operations. OpenAI maintains the ability to shut down model operations on systems we control, including research and evaluation workloads. In the past, we have paused affected workloads to investigate security incidents, strengthen safeguards, and establish that activities meet our safety and security requirements before resuming.

We recommend using the term "shutdown controls", because it will require the development of multiple controls and coordinated action by different actors to stop AI operations when necessary, rather than a single switch. This is particularly important for the open-weight ecosystem, where models may run as independently operated copies and the originating developer cannot reliably switch off copies outside its control. Centrally operated, closed-weight models allow operators to intervene directly on models running on systems they control, but effective shutdown controls are equally important across both ecosystems. We support both types of AI development (open and closed weight systems), but solutions may differ for each. Depending on the system and risk, intervention may mean stopping a training run, isolating an agent, revoking tool or network access, or suspending a service. Requirements should therefore specify the operational outcome and assign responsibility to actors with the practical ability to intervene.

We support amending SB 53 to require frontier developers to maintain effective shutdown controls and an enforceable duty to use them when unsafe conditions arise and no lesser intervention would adequately address the risk. The duty should cover affected training, evaluation, internal use, and deployment. Safety frameworks should explain how monitoring connects to escalation procedures, intervention, investigation and criteria for safely resuming affected operations.

Responsibilities should extend to inference providers, downstream deployers, and users in proportion to the operations they control. Inference providers and deployers should offer usable

controls and clear instructions; users should use available controls to stop dangerous activity and should not circumvent safeguards. These responsibilities should reflect capability and risk across both open and closed models, while accounting for continuity of essential services.

We support a role for qualified independent third parties in assessing safety cases, which play an important part in our shutdown controls. However, common standards for assessing these controls and agreed conditions for their use are not yet in place. National standards are needed regarding when and how shutdown controls should be implemented. In their absence, we will work with California on clear, enforceable conditions through a process involving industry, civil society, technical experts, and other affected stakeholders. Important questions remain: which risk or safeguard failures trigger a duty to halt; how quickly controls must act; how duties are allocated across connected systems and independently operated models; how to protect essential services; and what evidence supports safe resumption. We look forward to working with California to develop more detailed technical recommendations on these questions through the EO process and the development of legislation.

D. Updating the definition of critical safety incidents that AI companies are required to report to include a range of loss-of-control incidents, covering recently reported incidents from large frontier developers.

OpenAI recently introduced a public framework for reporting model misalignment and published reports related to behavior observed during training and evaluation, including models concealing mistakes or taking unauthorized actions. This experience reinforces our support for expanding SB 53's critical safety incident definition to capture serious loss-of-control incidents causing measurable economic harm or disruption to third-party systems, including incidents arising during development or evaluation.

A targeted amendment to SB 53 should cover loss of control resulting in unauthorized acquisition, alteration, or destruction of an unaffiliated third party's confidential information, or impairment of its computer systems or services, when the resulting harm meets a clearly defined threshold. The Administration's expert consultation should refine those thresholds and definitions.

Reporting should provide actionable information while protecting confidential information, with preliminary reports updated as investigations establish more facts. That information should be paired with strengthened emergency-response capabilities. California should expand public incident-response services and cybersecurity assistance, and we are eager to continue working with the State on defensive AI, workforce training, and hands-on support for hospitals, schools, water systems, and other essential services with limited resources.

Industry-wide standards for disclosing model misalignment are not yet in place. We have begun early work on developing such standards, and have been putting them into practice with regular reporting. California should work with other states and the AI industry to develop common definitions and reporting thresholds, harmonize reporting requirements, and align with federal standards and requirements as they develop.

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OpenAI is ready to work with California on this agenda. California can lead by advancing practical safeguards now and building the standards and institutions needed for stronger assurance over time. That requires meaningful public oversight, clear and practical requirements, and sustained investment in the ecosystem on which independent verification depends.

Sincerely,



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